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UGANDA

Human Rights Developments

President Yoweri Museveni's National Resistance Movement (NRM), in power since 1986, continued to govern through what it called the "movement" or "no-party" system of government, justifying its restrictions on political participation as essential to prevent a return to Uganda's violent past. The NRM's direct access to state resources and the exclusion of its "movement" structures from the stringent regulations placed on political parties guaranteed the NRM's political dominance, and effectively prevented independent political parties from organizing for change through electoral action. Violent opposition groups of several years standing fought in the north and west of the country, and renewed rebel activity emerged in eastern Uganda. These groups, particularly the Allied Democratic Forces (ADF) in the west, continued to carry out brutal assaults on civilians, brutalizing, killing, looting, and abducting adults and children alike. The Ugandan army was also responsible for serious abuses against civilians in areas of conflict, for which individual soldiers were rarely held to account.

The government continued its constitutional ban on independent political activities, prohibiting political parties from holding party conferences, public rallies, sponsoring candidates in elections, and opening branch offices. The Ugandan parliament, elected under the restrictive movement system, continued to assert its independence, censuring high-level government officials for corruption and questioning Uganda's military involvement in the Democratic Republic of Congo. The official Ugandan Human Rights Commission carried out credible investigations into many human rights abuses, including police and military abuses as well as poor prison conditions.

The Referendum Bill was passed in June, setting the stage for a June 2000 referendum which threatens to further entrench the restrictive movement political system. However, the phrasing of the question which will be put to voters remains to be finalized. All six major independent political organizations vowed to boycott the referendum, stating that human rights cannot be limited even by majority mandate, and that the referendum would not be free and fair because the NRM would not allow them to canvass support for their position. Observers noted that the continuing restrictions on the right to campaign against the movement system and the NRM's near complete dominance of the political sphere in Uganda would mean that voters would not be able to make a well-informed choice.

Programs of political and military education, popularly known as chaka-mchaka, were resurrected in the aftermath of the 1996 presidential and parliamentary elections. The chaka-mchaka programs took place throughout Uganda in anticipation of the June 2000 referendum, providing the NRM with a state-sponsored platform from which to spread its partisan political program and its message opposing independent political parties and pluralism. In September, six parliamentarians from Masaka district made a formal protest to President Museveni, alleging that civilians in their district had been forced to participate in chaka-mchaka courses at gunpoint, and had been required to pay fees for attending the course.

The Political Organizations Bill, originally introduced in 1997 to spell out in greater detail the restrictions under which political parties will operate, was withdrawn from Parliament in June, ensuring that the stringent constitutional restrictions on political party activities will remain in place during the campaign period for the June 2000 referendum. In its current form, the Political

Organizations Bill would continue many of the restrictions on political parties, including preventing them from sponsoring candidates and holding public rallies during elections.

Opposition politicians were harassed and occasionally arrested. Karuhanga Chapaa, chair of the opposition National Democrats Forum, was arrested and later convicted of sedition after allegedly making anti-Museveni comments at a political rally. Chapaa was also warned by a district commissioner to stop engaging in "illegal political activities" after attending another rally in the district. Wasswa Lule, a member of parliament, was arrested and interrogated by police in January after suggesting that President Museveni should be investigated for corruption. Several seminars by the Foundation for African Development, a group closely associated with the opposition Democratic Party, were interfered with by police, including one in Moyo district in January where three FAD officials were detained for twenty-eight hours.

Conflict with rebel forces continued in many areas of Uganda. Active rebel groups in 1999 included the West Nile Bank Front (WNBFF), Uganda National Rescue Front II (UNRF-II), and the Lord's Resistance Army (LRA), all operating from Sudanese rear bases and supported by the Government of Sudan, and the Allied Democratic Forces (ADF), operating in the Rwenzori mountains in Western Uganda and Eastern Congo. Rebel groups reemerged in Eastern Uganda including the Anti-Referendum Army (ARA), the Uganda Salvation Army (USA), and the Citizen's Army for Multiparty Politics (CAMP).

In northern Uganda, rebel activity associated with the Lord's Resistance Army decreased significantly after the rebel group returned to its camps inside government-held Sudan in February. However, the momentary cessation in fighting did not improve the lives of the thousands of children abducted by the LRA and kept at their Sudanese bases for use as child soldiers and sex slaves. Since 1996, the majority of civilians in northern Uganda have been moved into "protected camps" by the Ugandan Peoples' Defence Forces (UPDF), using a significant amount of force when civilians refused to comply. More than 300,000 civilians continue to live in these camps, where civilians are nominally more secure, but security is often inadequate to protect against LRA attacks. Access to housing, water, food, health care, and education in the camps is limited, and the camp populations remain dependent on international humanitarian organizations for subsistence. Sudan continued its active support for the LRA, allowing the LRA to operate from territory under Sudanese government control, supplying the LRA with food and weapons, and often placing Sudanese government soldiers in the vicinity of LRA camps.

In western Uganda, the Allied Democratic Forces (ADF) continued their abusive campaign in the Rwenzori mountain region, brutalizing and killing civilians and looting. Hundreds of civilians were killed in ADF raids and ambushes on unprotected civilian homes throughout the year. Some of those killed by the ADF were mutilated, sometimes by beheading. Civilians, both adults and children, were abducted during ADF raids to serve as porters or for forced recruitment into the rebel army. ADF attacks were focused around the town of Bundibugyo, which experienced an ADF offensive from February to July resulting in many civilian deaths. International aid agencies including the World Food Program, Medecins Sans Frontieres and ActionAid were repeatedly forced to suspend their life-sustaining humanitarian activities in western Uganda due to security threats, and the local population suffered from shortages of food, medicine, and shelter as well as repeated cholera outbreaks caused by poor sanitation and overcrowded living conditions in displaced persons camps. Nearly 100,000 civilians remain internally displaced because of this conflict in the southwest, a significant increase over the past year.

The UPDF was also responsible for serious human rights abuses, including arbitrary arrests and detentions, torture, and summary executions. UPDF soldiers who committed abuses held accountable for their actions. UPDF soldiers reportedly executed five children who were suspected of involvement in the ADF rebel movement in Fort Portal in January. In February 1999, the badly mutilated body of Patrick L. Ocan was found by relatives near Gulu, bound at the hands and feet. Ocan, who was reportedly last seen in UPDF custody days before his death, appeared to have been castrated, and had several stabwounds and a gunshot wound to the head.

Civilians continued to be frequently detained, and regularly abused, at army facilities without legal grounds or any form of civilian oversight. During court proceedings relating to torture allegations

published in the Monitor newspaper, army officials from northern Uganda casually admitted that civilian women are regularly "punished" at army facilities by having their heads forcibly shaven with blunt razors.

Rebel activity reemerged in eastern Uganda for the first time since the defeat of the Uganda People's Army in the late 1980s. In mid-1998, a previously unknown rebel group named the Uganda Salvation Army/Front (USA/F) began carrying out small-scale attacks on prisons and other government facilities in the East, leading to an increased deployment of government troops in the area. In May, a rebel group calling itself the Citizens Army for Multi-Party Politics (CAMP) claimed responsibility for an attack on a police post near the town of Lira which left one policeman dead. Brigadier Smith Opon Acak, the former chief of staff in Milton Obote's army, was killed by UPDF soldiers during what UPDF claims was a raid on a CAMP rebel training camp near Lira. Yet another rebel group, the Anti-Referendum Army (ARA), announced its existence after Parliament passed the referendum bill. In August and September, hundreds of ethnic Karimojong including many children and women died in inter-ethnic fighting related to cattle-rustling raids. The UPDF intervened in the Karimojong fighting in September, attacking warring Karimojong with helicopter gunships and causing heavy casualties.

In March, eight foreign tourists and a park warden were killed in Bwindi National Park, reportedly by Hutu rebels from neighboring Rwanda. President Museveni vowed to "catch or kill" the rebels, and the Ugandan army pursued and killed a number of suspected rebels in the neighboring Democratic Republic of Congo (DRC). Urban terror attacks continued in Kampala, with some thirty bomb attacks in or near Kampala claiming at least fifty-five lives since 1997. The National Army for the Liberation of Uganda (NALU), a little known rebel group, repeatedly claimed responsibility for the bomb attacks. Increasing insecurity in many parts of Uganda and threats made by rebel groups against U.S. nationals caused the U.S. Peace Corps to suspend operations and evacuate its volunteers in May.

Uganda executed twenty-eight condemned prisoners, convicted of murder or aggravated robbery, by hanging on April 29, ending a moratorium on executions in effect since 1996. Among the executed was Hajji Musa Sebirumbi, a former National Security Agency (NASA) agent and Uganda People's Congress official during the second government of Milton Obote, who was convicted in 1989 of the 1981 murder of five peasants who refused to disclose the whereabouts of Museveni's NRA guerrilla soldiers.

Prison conditions in Uganda were severe and at times life-threatening, especially in rural prisons where prisoners faced high mortality rates due to inadequate food and unsanitary conditions. Ugandan authorities continued to abuse serious security related charges such as treason to hold suspects in lengthy pre-trial detention, rarely respecting the 360-day limit on pre-trial detention for capital charges. Suspects regularly spend years in pre-trial detention on the flimsiest of evidence, making the right to a speedy trial virtually meaningless.

Idi Amin, who was responsible for a reign of terror in Uganda during his military dictatorship (1971-1979), continues to live in Saudi Arabia and has never been called to account for the widespread human rights abuses committed during his rule.

Defending Human Rights

Uganda has a large number of active human rights organizations, mostly based in the capital Kampala. Local human rights organizations showed an increasing interest in monitoring and advocacy activities, compared to their past focus on less controversial human rights education activities. The increased monitoring activity of the human rights community is at least partly due to the work of the governmental human rights commission, which has demonstrated that the government is willing to allow some monitoring of sensitive human rights issues such as abuses by the army and security organizations. Government continues to control civil society groups through the manipulation of their registration, requiring NGOs to be nonsectarian and nonpolitical. The government continues to refuse to register the Uganda National NGO Forum, a broad consortium of national and foreign NGOs, and declared its May 1999 second general assembly "unlawful." NGOs groups with ties to political organizations, such as the Foundation for African Development, faced frequent harassment and interference with their seminars and public events. Threatened Congolese human rights activists who

were forced to flee to Uganda complained that security operatives from the Ugandan-backed Congolese Rally for Democracy (CRD) harassed them and kept them under surveillance in Kampala.

The Role of the International Community

As Uganda prepared for a referendum on its restrictive political system scheduled for June 2000, the European Union (E.U.) and the United States (U.S.) increasingly expressed concerns about violations of political freedoms in Uganda. This increasing dialogue between the international community and Uganda on freedom of association, assembly and expression represented a clear change from the past, when the international community steered clear from raising concerns about Uganda's political system and mostly limited its concerns to abuses associated with rebel conflict in Uganda. However, this increased rhetoric about the need to respect political freedoms and the rights of civil society in Uganda was rarely matched by any specific action. While the international community publicly stated that it wanted a free and fair referendum, it did not publicly protest when the Ugandan government continued to create legal obstacles that made a free and fair referendum impossible.

United Nations

The grave abuses of civilian populations, particularly the large-scale abductions of children, by rebel groups operating in western and northern Uganda continued to be a prominent concern of the United Nations. As in 1998, the United Nations Commission on Human Rights adopted a resolution on the abduction of children in northern Uganda at its 1999 session, calling upon the LRA to cease abducting children and release children being held by the rebel group. UNICEF and the U.N. special representative of the secretary-general for children and armed conflict, Olara Otunnu, continued to work for an end to abductions of children by rebel groups and for the release of children in rebel hands. The U.N. Security Council was briefed by Otunnu and Ugandan diplomats on rebel abuses against children in Uganda during the debate leading to a Security Council resolution urging greater protection for children in armed conflict.

European Union

The E.U. and its member states became increasingly vocal about human rights abuses and governance issues in Uganda, publicly rebuking Uganda on several occasions. This public dialogue between the E.U. and Uganda presented a clear break with the past, when the E.U. had remained mostly quiet about Uganda's human rights problems and had structured its relationship with Uganda around development programs. However, the statements made by various officials from E.U. member states were often contradictory, suggesting that there was little consensus on how to address human rights issues in Uganda.

During a December 1998 donor meeting in Kampala, then E.U. president Austria presented a strong statement on the need for democratization to the Uganda authorities. The statement informed the Ugandan government that the E.U. would closely monitor "developments between now and the referendum in 2000."

The April executions of twenty-eight prisoners led to statements of protest by the E.U. and the United Kingdom, with the United Kingdom stating it was "deeply shocked" and the E.U. calling for the abolition of the death penalty in Uganda.

Britain's Secretary for International Development Clare Short expressed support for the June 2000 referendum during a visit in May, stating that "Ugandans have a right to choose what they want," a position which ignores the manipulation of the referendum issue by the NRM and the fact that opposition political parties will not be able to canvass support for their position in the referendum. Clare Short also stated that she had reached an "understanding" with Museveni on military spending, but refused to make the details of this understanding public.

Dutch Minister for Development and Cooperation Eveline Herfkens took a more forceful position during an August visit to Kampala, threatening to cut off Dutch aid if Uganda did not reduce defense expenditures. The Dutch Minister also reportedly criticized the NRM for extending its transitional period, dismissed the referendum as being devoid of fairness, and urged stronger measures to end

corruption. The Dutch government had just approved US \$38 million in aid for Uganda, and wanted to ensure that the money would not subsidize increased military spending.

United States

Uganda's involvement in the conflict in neighboring conflict, and increasing concerns about corruption and the anti-democratic tendencies of the NRM, led to a noticeable distancing by the United States (U.S.). After hosting President Clinton and other high-profile visitors in 1998, Uganda received scant attention from the United States in 1999, and the Clinton administration significantly toned down its characterization of President Museveni as a "new leader." However, President Museveni did receive regular visits of U.S. envoys to discuss the war in neighboring Democratic Republic of Congo (DRC) because of the involvement of Ugandan troops in that conflict. Senator Paul Wellstone of Minnesota inserted an amendment in the 1999 Defense spending bill, condemning the abduction of children by the LRA and urging Sudan to use its influence to secure the release of children in LRA captivity.

In her June parting speech to the Ugandan parliament, outgoing U.S. ambassador Nancy Powell spoke about the importance of basic freedoms such as freedom of speech, religion, association, and the press. While implicitly accepting the idea of a referendum on fundamental human rights in her speech, the outgoing ambassador did express the need for "a clear and open campaign process, a level playing field, and complete fiscal transparency." Ambassador Powell had rarely publicly raised such issues during her tenure.

Uganda received approximately \$50 million in direct bilateral aid from the U.S., including programs on education, food security, health, and the environment. In addition, some \$25 million was provided in food aid. Uganda's involvement in the DRC conflict led to diminished contacts with the U.S., including a reduction in military-to-military ties. Uganda continued to receive some \$300,000 in military training under the International Military Education and Training (IMET) program, although its participation in the African Crisis Response Initiative (ACRI) continued to be informally suspended because of its military involvement in the DRC.

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